



CHAPTER xx.

An Act to empower the mayor aldermen and citizens of the city of Wakefield to construct further waterworks to extend the time for constructing certain authorised waterworks to make further provision with regard to their water undertaking and for other purposes. A.D. 1916.
[19th July 1916.]

WHEREAS the city of Wakefield in the west riding of the county of York is a municipal borough under the local government of the mayor aldermen and citizens of the city of Wakefield (in this Act called "the Corporation"):

And whereas by the Wakefield Corporation Waterworks Act 1880 the Corporation were authorised to construct waterworks certain of which (including Green Withens Reservoir) have since been constructed and completed:

And whereas by the Wakefield Corporation Act 1889 the Corporation were authorised to construct certain impounding reservoirs called Oxygrains Reservoir Booth Dean Reservoir and Linsgreave Reservoir and a service reservoir called Lee Hill Reservoir and the time for constructing those works has been extended by the Wakefield Corporation Act 1899 and the Wakefield Corporation Act 1909:

And whereas it has been found inadvisable to proceed with the said Oxygrains Reservoir and Booth Dean Reservoir and it is therefore expedient to empower the Corporation to abandon the construction of those reservoirs and the said Linsgreave Reservoir and to construct partly on the sites of the said two first-named reservoirs the reservoirs by this Act authorised and also to empower the Corporation to raise the embankment of the said Green Withens Reservoir as by this Act authorised:

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And whereas it is expedient that the time for the construction of the said Lee Hill Reservoir (Work No. 7) and the line of pipes (Work No. 8) authorised by the Act of 1889 should be further extended as by this Act provided :

And whereas it is expedient that the provisions with regard to compensation water contained in the Act of 1880 and in the Act of 1889 should be altered as by this Act enacted :

And whereas the Corporation were by the Act of 1889 and the Act of 1909 authorised to borrow money for the purposes of the works authorised by the Act of 1889 but the sum of nine thousand eight hundred and sixty-eight pounds authorised to be borrowed by the Act of 1889 has not been borrowed and none of the money (amounting to one hundred and fifty thousand pounds) which the Corporation were authorised to borrow for the said purposes by the Act of 1909 has been borrowed :

And whereas in consequence of the abandonment of the Oxygrains Reservoir the Booth Dean Reservoir and the Linsgreave Reservoir authorised by the Act of 1889 and the substitution for those works of the works by this Act authorised it is expedient that the Corporation should be empowered to apply to the purposes of this Act the sum of five thousand pounds (part of the said sum of nine thousand eight hundred and sixty-eight pounds) which they are authorised to borrow under the Act of 1889 and the said sum of one hundred and fifty thousand pounds which they are authorised to borrow under the Act of 1909 which said sums of five thousand pounds and one hundred and fifty thousand pounds are not now required for the purposes of the Act of 1889 :

And whereas it is expedient that the other powers with regard to the water undertaking of the Corporation set forth in this Act should be conferred upon the Corporation :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows—

For and in connexion with the purchase of lands	
for and the construction of the works authorised by this Act	£155,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years : A.D. 1916.

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the West Riding of the county of York and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the Wakefield Corporation Act 1916. Short title.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :— Incorporation of Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847 ;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts :

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(2) The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 :

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act "the railway" means the waterworks by this Act authorised and "the centre of the railway" means the boundaries of the reservoirs and gauge basin and the centres of the conduits respectively.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

"The Corporation" means the mayor aldermen and citizens of the city of Wakefield;

"The city" means the city of Wakefield;

"The council" "the mayor" and "the town clerk" mean respectively the council the mayor and the town clerk of the city;

"City fund" and "city rate" and "district fund" and "general district rate" mean respectively the city fund and city rate and the district fund and general district rate of the city;

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“The Act of 1880” “the Act of 1889” “the Act of 1899” A.D. 1916.

“the Act of 1900” and “the Act of 1909” mean respectively the Wakefield Corporation Waterworks Act 1880 the Wakefield Corporation Act 1889 the Wakefield Corporation Act 1899 the Wakefield Corporation Market Act 1900 and the Wakefield Corporation Act 1909;

“The tribunal” means the jury arbitrators umpire or other authority to whom any question of disputed purchase money or compensation under this Act is referred.

4. The Corporation may and shall abandon the construction of the following works authorised by the Act of 1889 (namely):—

- (A) The Oxygrains Reservoir;
- (B) The Booth Dean Reservoir; and
- (C) The Linsgreave Reservoir.

5. The abandonment by the Corporation under the authority of this Act of the works hereinbefore authorised to be abandoned shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Corporation on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of the work and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Corporation to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845.

WORKS.

6. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the following works (that is to say):—

Work No. 1 An enlargement and extension of the existing Green Withens Reservoir of the Corporation to be formed by lengthening the existing embankment and raising it

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throughout to a height of 2 feet 6 inches above the top of the existing embankment :

Work No. 2 A line of pipes or conduit (to be called the Linsgreave Conduit) commencing in Linsgreave Clough at a point 32 chains measured in a south-westerly direction from Spa Bridge and terminating in the Linsgreave Catchwater at a point 25 chains measured in a south-westerly direction from Spa Bridge :

Work No. 3 An impounding reservoir (to be called the New Oxygrains Reservoir) to be formed by means of an embankment across the stream called "Oxygrains" at a point on the said stream 13 chains measured in a westerly direction from the Oxygrains Bridge :

Work No. 4 A line of pipes or conduit (to be called the Oxygrains Conduit) commencing in the New Oxygrains Reservoir authorised by this Act or the embankment thereof at a point 13 chains measured in a westerly direction from the said Oxygrains Bridge and terminating at a point on the Moss Moor Catchwater 9 chains south of the said Oxygrains Bridge :

Work No. 5 An impounding reservoir (to be called the Upper Booth Dean Reservoir) to be formed by means of an embankment across the stream called Booth Dean Clough at a point on the said stream $41\frac{1}{2}$ chains measured in an easterly direction from the said Oxygrains Bridge :

Work No. 6 An impounding reservoir (to be called the Lower Booth Dean Reservoir) to be formed by means of an embankment across the stream called Booth Dean Clough at a point on the said stream 53 chains measured in an easterly direction from the said Oxygrains Bridge :

Work No. 7 A gauge basin commencing at a point on the Booth Dean Clough 59 chains or thereabouts measured in an easterly direction from the said Oxygrains Bridge and terminating at a point $60\frac{1}{4}$ chains or thereabouts measured in an easterly direction from the said bridge.

In addition to the foregoing works the Corporation may upon the said lands make and maintain all such cuts channels catchwaters tunnels adits pipes conduits syphons culverts drains sluices weirs bywashes shafts wells bores water-towers overflows waste-water channels gauges filter beds tanks banks dams walls

embankments piers bridges fences telegraphs telephones engines tramroads approaches machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the hereinbefore described works or any of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. A.D. 1916.

7. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards: Limits of deviation.

Provided as follows:—

The Corporation shall not construct any embankment or dam of any impounding reservoir by this Act authorised of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or dam and three feet in addition:

Except for the purpose of crossing over a stream canal or railway no part of the conduits shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

8. In the execution of any of the works by this Act authorised the Corporation shall not without the consent of the county council of the West Riding of Yorkshire divert or otherwise alter the Oldham and Ripponden main road and the Corporation shall not without the like consent alter or construct any works upon Oxygrains Bridge. For protection of West Riding County Council.

9. The following provisions shall apply and have effect for the protection of the estate in the township of Rishworth in the West Riding of the county of York of which John Savile Baron Savile is or claims to be the tenant for life and for the protection of the said John Savile Baron Savile or other the owner or owners for the time being of the said estates or any part thereof all of whom are in this section meant by and included in the expression "the owner":— For protection of estate of Lord Savile in township of Rishworth.

All lands rights easements interests and privileges required by the Corporation from the owner for the purposes of

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this Act shall be acquired and held subject to the following provisions (that is to say):—

(1) The Corporation shall as part of the enlargement and extension of the Green Withens Reservoir construct a new private roadway at least ten feet wide over the said embankment as so lengthened and raised and such roadway shall be formed and completed to the reasonable satisfaction of the owner or his agent and the Corporation shall in the meantime and pending the formation and completion of the said roadway provide a temporary roadway over the said embankment for the use of the owner his lessees tenants and servants and other persons authorised by him or them :

(2) The Corporation shall as soon as may be after they shall have taken possession of the land required for the construction of each of the new reservoirs authorised by this Act or for any of the works or purposes in connexion therewith and shall have been required so to do by the owner fence off the portion of land required for each such reservoir from the other lands of the owner with a good and sufficient fence and shall for ever thereafter maintain the same and renew such fence when necessary and the Corporation shall include in the works to be constructed by them on the said lands the formation of a private footway over the embankment of each such reservoir The footway over the embankment of the New Oxygrains Reservoir shall be six feet wide and the footways over the embankments of the Upper Booth Dean and Lower Booth Dean Reservoirs respectively shall be four feet six inches wide and every such footway shall be provided with a good and sufficient handrail on each side of it and the said footways shall be formed and completed to the reasonable satisfaction of the owner or his agent :

(3) The Corporation shall construct a footbridge over the Spa Clough on the line of the Oxygrains Conduit by this Act authorised a footbridge over the Booth Dean Clough at or near the western end of the Upper Booth Dean Reservoir by this Act authorised and a footbridge over the Castle Dean Clough at or near the northern

end of the New Oxygrains Reservoir by this Act authorised and the said footbridges shall be of wood and similar in design to that constructed over the Moss Moor Catchwater: A.D. 1916.

(4) The right of user in common with the Corporation of the said private roadway the said footways and footbridges and any road or roads of approach to the said reservoirs or any of them shall be secured to the owner and his lessees tenants and servants and other persons authorised by him or them by proper reservations and provisions to be inserted in the conveyance or conveyances to be made to the Corporation but upon such condition as to maintenance and repair when such roadways or roads are used by the owner or his tenants or other persons aforesaid as may from time to time be agreed upon between the owner and the Corporation or as may be settled in default of agreement as provided by this section:

(5) The Corporation shall construct maintain and keep the lines of pipes or conduits authorised by this Act so far as they are constructed through the said estate watertight and the Corporation shall from time to time make good any damage done or which may occur to the said estate or the owner or his tenants during the construction or maintenance of the works by this Act authorised by reason or in consequence of the bursting leaking overflow or any failure of any such works:

(6) The provisions of subsection (c) of section 22 (For the protection of the estates of Henry Savile in the townships of Rishworth and Soothill Upper) of the Act of 1880 shall extend and apply to the owner in relation to the lines of pipes and conduits and other works authorised by this Act and the provisions of subsections (f) and (g) of the said section shall extend and apply to the Corporation as if the same were herein repeated with reference to the owner and in respect of the works authorised by this Act:

(7) No temporary huts or erections which shall be required by the Corporation in the township of Rishworth for the accommodation of overseers servants workmen navvies and other persons employed during

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the construction of the said works shall be erected on any part of the moorland except in some convenient place or places by the side of the Oldham and Ripponden main road but the Corporation shall be at liberty to construct offices for their officials stables for their horses and two huts for the horse-keepers at or near the embankment of the enlarged Green Withens Reservoir at or near the embankment of the New Oxygrains Reservoir at or near the embankment of the Upper Booth Dean Reservoir and at or near the embankment of the Lower Booth Dean Reservoir:

(8) The exclusive rights of fishing fowling and sporting in and over and of stocking with fish the enlarged Green Withens Reservoir and all other reservoirs authorised by this Act in the township of Rishworth are hereby reserved exclusively (but as privileges appurtenant to and inseparable from the ownership of the Rishworth Estate) to the owner who shall be at liberty to keep one boat upon each reservoir and to erect and maintain a sufficient boathouse on the banks thereof but so as not to interfere with the works of the Corporation and the covering and protection thereof:

Provided nevertheless that such rights powers and authorities shall not be exercised so as to foul the waters of those reservoirs and shall not in anywise interfere with the right power and authority of the Corporation at all times to draw off the water from the said reservoirs and to do all such other acts matters and things whatsoever as may be necessary for cleaning and repairing the said reservoirs and works connected therewith and for preventing the water therein from being fouled or for preventing the accumulation of fish to an unreasonable extent so as to affect the quality or taste of the water:

Provided further that if it shall be necessary to draw off the water to a lower level than ten feet above the invert of the upper end of the discharge culvert or tunnel of the New Oxygrains Reservoir or to a lower level than two feet six inches above the invert of the upper end of the discharge culvert or tunnel of the Upper Booth Dean Reservoir or the Lower Booth Dean Reservoir the owner shall have seven clear days' notice

in writing of the intention of the Corporation to draw off the water: A.D. 1916.

(9) The Corporation shall not erect any wires under the powers of the section of this Act the marginal note whereof is "Application of Waterworks Clauses Act 1847 to conduits discharge pipes and telephones" except in such positions and in such manner as may be approved by the owner or his agent:

(10) Notwithstanding anything contained in the section of this Act the marginal note whereof is "Power to retain sell &c. lands" or in the Acts of 1880 and 1889 should any land of the owner or his predecessors in title to the Savile York Estates which shall have been purchased by the Corporation under the powers of this Act or of the Act of 1880 or of the Act of 1889 not be required by the Corporation they shall if they decide to sell such land first offer it to the owner:

(11) If any difference shall arise between the Corporation and the owner with regard to any of the provisions of this section such difference shall be referred to and determined on the application of either party by a single arbitrator to be appointed by the President of the Surveyors' Institution and the provisions of the Arbitration Act 1889 shall apply to any such reference.

10.—(1) The Corporation shall erect fit up and maintain or provide—

(A) Such huts or buildings for the accommodation of the workmen employed in and about the construction of the enlargement and extension of the existing Green Withens Reservoir and the construction of the reservoirs Works Nos. 3 5 and 6 authorised by this Act;

(B) Such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases;

Accommodation for workmen employed on construction of reservoirs.

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connexion with every such building and hospital.

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(2) The Corporation shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or otherwise.

(3) The medical officer of health of the county council of the West Riding of Yorkshire (hereinafter called "the county council") and the medical officer of health and inspector of nuisances of the urban district council of Rishworth shall be entitled at any time to enter into and inspect and examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Corporation shall give every such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such medical officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the county council that the Corporation have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Corporation shall afford and maintain such accommodation as the county council may require :

Provided that if within fourteen days after the receipt of notice of any requirement of the county council under this subsection the Corporation give notice to the county council that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board on the application of either of the parties to the difference and the Local Government Board may make such requirements (if any) in variation of the requirements of the county council as they may think fit.

(6) If the Corporation fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the county council.

(7) Any expenses incurred by the county council in carrying out the provisions of this section shall be repaid to the county council by the Corporation and shall be recoverable as a debt due from the Corporation to the county council.

(8) The Corporation shall pay to the Local Government Board any expenses incurred by that Board under this section including a sum not exceeding three guineas a day for the services of any inspector in connexion with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section and the expenses of any witnesses summoned by the inspector.

11. Subject to the provisions of this Act the Corporation may for the purposes of their waterworks collect impound take use and appropriate all the waters of the streams called Oxygrains Linsgreave Clough Spa Clough Booth Dean Clough Pickard Gutter and Stake Gutter and of all the tributary streams and springs of those streams at or above the gauge basin (Work No. 7) by this Act authorised which may be intercepted by the works by this Act authorised. Power to take waters.

12. All water supplied by the Corporation to their consumers by means of the works by this Act authorised shall be properly and efficiently filtered or otherwise treated so as to prevent it acting on lead in such manner as to endanger the health of such consumers and if the Corporation make default under this section they shall be liable to a penalty not exceeding ten pounds for every day during which such default shall continue. Prevention of plumbism.

13.—(1) As full compensation to all persons interested in the waters to be taken impounded and appropriated by the Green Withens Reservoir as existing or as enlarged as authorised by this Act the Linsgreave Catchwater and the Green Withens Catchwater authorised by the Act of 1880 the Green Withens Catchwater No. 2 authorised by the Act of 1889 the New Oxygrains Reservoir the Upper Booth Dean Reservoir the Lower Booth Dean Reservoir the Linsgreave Conduit the Oxygrains Conduit and the gauge basin (Work No. 7) authorised by this Act the Corporation— Compensation water.

(A) Upon the passing of this Act and until the said gauge basin (Work No. 7) shall have been constructed shall cause to flow from the Green Withens Reservoir and to be discharged through the existing gauge

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basin below such reservoir into Castle Dean Clough one thousand two hundred and forty-nine gallons of water per minute on the days and during the hours hereinafter mentioned :

(B) As soon as the said gauge basin (Work No. 7) shall have been constructed shall cause to flow from that gauge basin and to be discharged into the Booth Dean Clough immediately below that gauge basin one thousand four hundred and forty-seven gallons of water per minute on the days and during the hours hereinafter mentioned.

(2) Provided that the Corporation shall complete the construction of the said gauge basin (Work No. 7) before they take impound or use water by means of the works referred to in this section which have not been constructed at the date of the passing of this Act.

Regulation
of flow of
compensa-
tion water.

14. When and so soon as the Corporation shall have constructed the gauge basin (Work No. 7) by this Act authorised they may if they think fit discharge from that gauge basin the whole of the compensation water required by the Act of 1880 to be discharged from the Ringstone Reservoir authorised by that Act (except the quantity of eighty-four gallons per minute required to be discharged into Butts Clough which quantity shall continue to be so discharged) in addition to the compensation water by this Act required to be discharged in respect of the works mentioned in the section of this Act the marginal note whereof is "Compensation water" and if and so long as the Corporation so discharge the said compensation water they may thereupon cease to discharge any water by way of compensation from the Ringstone Reservoir except the said quantity of eighty-four gallons per minute which shall continue to be discharged into Butts Clough as provided by the Act of 1880.

As to mode
and time of
discharging
compensa-
tion water.

15.—(1) The compensation water required to be discharged in respect of the works mentioned in the section of this Act the marginal note whereof is "Compensation water" and the compensation water required to be discharged in respect of the Ringstone Reservoir if discharged from the gauge basin (Work No. 7) by this Act authorised shall be discharged respectively in a regular equal constant and continuous supply during eleven hours of each of the working days of the year as hereinafter

defined except Saturdays and during six hours of each Saturday of such working days commencing (notwithstanding anything in section 33 (As to mode and time of discharging compensation water) of the Act of 1880) at five o'clock in the morning of each day. A.D. 1916.

(2) The working days in every year which are hereinbefore referred to shall be those which remain after excluding Sundays Good Friday and Christmas Day.

16.—(1) The Corporation until the construction of the gauge or gauges referred to in subsection (2) of this section shall maintain the existing gauge basin below the Green Withens Reservoir through which shall flow the compensation water required by this Act to be given until the gauge basin (Work No. 7) by this Act authorised shall have been constructed. Gauge to be constructed.

(2) The Corporation shall construct and for ever after maintain in a convenient place immediately below the gauge basin (Work No. 7) by this Act authorised a suitable measuring gauge or gauges which gauge or gauges shall be of the construction called slot gauges over or through which the compensation water required by this Act to be given after the construction of the said gauge basin (Work No. 7) shall flow and over or through which the compensation water required to be discharged in respect of the Ringstone Reservoir shall (if discharged from the said gauge basin) also flow and every such gauge shall be examined and when approved as fit and proper for the purpose shall be certified accordingly at the expense of the Corporation by a competent and impartial engineer to be appointed by the President for the time being of the Institution of Civil Engineers upon the application of the Corporation or of any person or persons interested.

(3) The engineer of the Corporation on the one hand and any such person or persons interested on the other hand may make representations to the engineer appointed as aforesaid with regard to the suitability or fitness of any gauge or gauges to be constructed by the Corporation in pursuance of the provisions of this section and if the engineer of the Corporation and any such person or persons disagree as to such suitability or fitness the disagreement shall be settled by the engineer appointed as aforesaid and the provisions of the Arbitration Act 1889 shall apply to the settlement of such disagreement.

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(4) The said existing gauge basin below Green Withens Reservoir and every gauge referred to in subsection (2) of this section shall be open to the inspection and examination of the company of proprietors of the Calder and Hebble Navigation or (if that navigation shall be let on lease) of their lessees and of the undertakers of the navigation of the Rivers Aire and Calder and also of the owners and occupiers of the several present and future mills and works interested therein down to and inclusive of any mill or work on Cooper Bridge Dam Fall on the Calder or of the agents of such respective company or their lessees undertakers owners or occupiers specially appointed in that behalf.

Compensation on failure to supply stipulated quantity of water.

17. In case the Corporation shall wilfully or negligently fail to discharge the quantity of water required by this Act to be discharged as compensation for the waters taken impounded and appropriated by the works referred to in the section of this Act the marginal note whereof is "Compensation water" they shall for and during every day on which such failure shall occur pay by way of liquidated damages to the company of proprietors of the Calder and Hebble Navigation or (if that navigation shall be let on lease) to their lessees and to the undertakers of the navigation of the Rivers Aire and Calder and also to the occupier of any and every mill or works using water as a motive power affected thereby (such mills or works including and not being lower down than any present or future mill or works erected on Cooper Bridge Dam Fall upon the River Calder) the sum of five pounds and every such sum may be recovered in any court of competent jurisdiction.

As to damages in case of failure of works.

18. The Corporation shall and they are hereby required from time to time and at all times after the passing of this Act to pay and make good to the owners lessees and occupiers of all mills manufactories dwelling-houses buildings lands and grounds and every person whomsoever all loss costs charges sum and sums of money damages and expenses whatsoever and all injury of what nature and kind soever which such owners lessees or occupiers or other persons may suffer incur pay expend or be put unto by reason or in consequence of the failure or giving way of the reservoirs embankments or other works of the Corporation referred to in the section of this Act the marginal note whereof is "Compensation water" the Moss Moor Catchwater the Ringstone Compensation Conduit and the line of pipes No. 1 authorised by the Act of 1880 and all

other works authorised by the Act of 1880 and the Act of 1889 which are not abandoned or the powers to construct which have not expired. A.D. 1916. —

19.—(1) The following sections of the Act of 1880 and the Act of 1889 are hereby repealed:—
Wakefield Corporation Waterworks Act 1880—

Repeal of certain provisions of Acts of 1880 and 1889.

Section 31 Compensation water from Green Withens Reservoir;

Section 32 Regulation of flow of compensation water:

Wakefield Corporation Act 1889—

Section 18 Compensation in respect of additional gathering ground;

Section 19 Compensation water.

(2) The following sections of the Act of 1880 are hereby repealed except so far as they relate to the Ringstone Reservoir:—

Section 33 As to mode and time of discharging compensation water;

Section 34 Definition of working days;

Section 35 Gauges to be constructed;

Section 36 Compensation on failure to supply the stipulated quantity of water;

Section 37 As to damages in case of failure of works.

20. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting powers of Corporation to abstract water.

21. If the works by this Act authorised and delineated on the deposited plans are not completed within fifteen years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of their works and plant and in the case of the conduits or lines of pipes authorised by this Act lay down additional lines of pipes to form part of such conduits as and when occasion may require.

Period for completion of works.

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Temporary discharge of water into streams.

22.—(1) For the purpose of constructing enlarging extending repairing cleansing or examining the reservoirs conduits and other waterworks of the Corporation the Corporation may cause the water in such works or any of them to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

(3) Any water discharged by the Corporation in exercise of the powers of this section shall be as free as may be reasonably practicable from mud or solid or offensive matter.

Application of Waterworks Clauses Act 1847 to conduits discharge pipes and telephones.

23. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of the conduits authorised by this Act and of any discharge-pipes telephone or telegraph posts wires conductors or apparatus which the Corporation may and which they are hereby authorised to erect or lay down for the purposes of their water undertaking.

For protection of Postmaster-General.

24. No telephone or telegraph posts wires conductors or apparatus erected laid down made or maintained under the authority of this Act shall be used for transmitting telegrams which are within the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869.

Works to form part of undertaking of Corporation.

25. The works by this Act authorised shall for all purposes be deemed part of the water undertaking of the Corporation.

Extension of time for construction of works authorised by Act of 1889.

26. The period limited by the Act of 1889 as amended by the Act of 1899 and the Act of 1909 for the completion of the Lee Hill Reservoir (Work No. 7) and the line of pipes or conduit (Work No. 8) authorised by the Act of 1889 is hereby extended until the expiration of fifteen years from the date of the passing of this Act.

LANDS.

Power to acquire lands.

27. Subject to the provisions and for the purposes of this Act the Corporation may enter on take and use all or any of

the lands delineated on the deposited plans and described in the deposited book of reference : A.D. 1916.

Provided that the Corporation shall inclose only so much of Rishworth Moor and Moss Moor as shall be required for the purposes of the water undertaking of the Corporation.

28. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the West Riding of the county of York for the correction thereof and if it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the West Riding of the county of York and such certificate shall be kept by such clerk of the peace with the other documents to which the same relate and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Correction of errors in plans and book of reference.

29.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

Corporation may acquire easements only in certain cases.

(2) As regards any lands in respect of which the Corporation have acquired easements only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

A.D. 1916.

(3) Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Costs of arbitration &c. in certain cases.

30.—(1) The tribunal shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time has been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

Period for compulsory purchase of lands.

31. The powers of the Corporation for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Power to purchase additional

32.—(1) In addition to any land vested in the Corporation or which they are authorised to purchase the Corporation may

from time to time by agreement purchase take on lease and hold such further quantities of land within the drainage area of the Booth Dean Clough and its tributaries as they may deem expedient in order to protect the streams communicating with their waterworks against nuisance pollution fouling contamination or discolouration and such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively Provided that no buildings shall be erected on such lands except buildings required for the purposes of the waterworks.

A.D. 1916.
lands by
agreement.

(2) The Corporation may also for other purposes of their water undertaking purchase take on lease and acquire by agreement and hold any other lands not exceeding twenty acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

(3) The powers conferred by this section shall not authorise the grant or inclosure of common without the consent of the Board of Agriculture and Fisheries.

33. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their water undertaking and may erect maintain and let dwelling-houses for such persons upon any lands for the time being belonging to the Corporation for the purposes of the said undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for the purposes of the said undertaking.

Dwelling-houses for persons in Corporation's employment.

34. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

35. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and

Power to retain sell &c. lands.

A.D. 1916. — for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them in connexion with their water undertaking and not for the time being required for the purposes thereof and the Corporation may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do or execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Application
of moneys
arising from
sale of lands.

36. The Corporation shall apply all moneys from time to time received by them in respect of any sales exchanges or disposition of lands purchased by them for the purposes of this Act or by way of fine or premium on any lease of such lands and any other moneys received on capital account under this Act in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Corporation and such proceeds shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Reservation
of water
rights &c.
on sale.

37. The Corporation on selling any lands acquired by them in connexion with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Power to lay
down sewers
and drains in
drainage
areas.

38. The Corporation may in and upon the lands acquired by the Corporation within the drainage area of the Booth Dean Clough and its tributaries above the gauge basin (Work No. 7) by this Act authorised or in or upon any other lands within such drainage area with the consent of the owners lessees or occupiers of such lands construct and lay down drains sewers

watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take or impound from being polluted fouled contaminated or discoloured and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road in or adjoining such lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

39. The Corporation may make and carry into effect agreements with the owners lessees and occupiers of any lands within the drainage area of any reservoir or other waterworks belonging to the Corporation with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Corporation are for the time being authorised to divert collect and appropriate flowing to upon or from any such lands directly or derivatively into such reservoirs and works.

A.D. 1916.
Power to agree as to drainage of lands &c.

40. The Corporation may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Corporation shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Power to hold lands for protection of waterworks.

WATER SUPPLY.

41.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 (relating to the breaking up of streets) the Corporation may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying

Meters may be placed in streets to measure water or detect waste.

A.D. 1916. — houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop break up and interfere temporarily with public and private streets sewers gas or water pipes electric lines wires and apparatus The Corporation shall provide reasonable access for all persons bonâ fide going to or returning from any house in any street of which the carriage-way or footway is stopped up under the powers of this section.

(2) Provided that the Corporation shall not interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 (Power to undertakers to alter position of pipes and wires) of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

(4) Provided also that the Corporation shall not enter upon break up or interfere with the works electric lines wires or apparatus of the Great Northern and Great Central Railway Companies or of the Lancashire and Yorkshire Railway Company or of the Lancashire and Yorkshire and Great Northern Railway Companies jointly except with the consent of such companies or company respectively in writing and under the supervision of the engineer of such companies or company respectively and the Corporation shall where necessary provide reasonable means of access for vehicular and pedestrian traffic bonâ fide going to or coming from the houses or stations or other premises of the said railway companies in any streets so stopped up.

Power to
Corporation
to repair
communica-
tion pipes.

42.—(1) If it should appear to the Corporation that by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property it shall be lawful for the Corporation to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation

in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. A.D. 1916.

(2) Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner or occupier (if the communication pipe is repairable by him) of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

(3) Provided also that the provisions of this section shall not apply to communication pipes on the railways of the Great Northern and Great Central Railway Companies or of the Lancashire and Yorkshire Railway Company or of the Lancashire and Yorkshire and Great Northern Railway Companies jointly or on premises used in connexion with the working of those railways unless the Corporation shall have given the said companies or company affected notice of any such injury or defect as aforesaid and the said companies or company affected shall have failed for twenty-four hours to make good or remedy such injury or defect.

43.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus in the city the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes. Power to person liable to maintain pipes &c. to open ground.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the city execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

44. If the owner of any house supplied with water by the Corporation when so required in pursuance of section 8 (Corporation not bound to supply several houses by one pipe) of the Act of 1909 fails to provide a separate pipe from the main pipe into such house the Corporation may provide such separate Provision of separate communication pipes.

A.D. 1916. pipe and execute all works necessary for connecting such pipe with their water mains and may recover from the owner the expenses incurred by them in providing such pipe and executing such works.

FINANCE AND MISCELLANEOUS.

Power to apply moneys not required for purposes of Act of 1889 to purposes of this Act.

45. The Corporation may apply to the purposes of this Act the sum of five thousand pounds being part of the sum of nine thousand eight hundred and sixty-eight pounds which they are authorised to borrow under the Act of 1889 and the sum of one hundred and fifty thousand pounds which they are authorised to borrow under the powers of the Act of 1909 and not required for the purposes for which those moneys were authorised to be borrowed:

Provided that the powers conferred by this section shall not be exercised by the Corporation during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Power to borrow.

46.—(1) The Corporation may independently of any other borrowing power borrow at interest the sum requisite for paying the costs charges and expenses of this Act as hereinafter defined and they shall pay off all moneys so borrowed within the period of five years from the passing of this Act which period is in this Act referred to as "the prescribed period."

(2) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act.

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Local Government Board.

(3) In order to secure the repayment of the money borrowed under this Act and the payment of interest thereon the Corporation may mortgage or charge the revenue of their water undertaking and the district fund and general district rate and (as regards money borrowed under subsection (1) of this section) the city fund and city rate or any of those securities:

Provided that the provisions of this subsection shall not limit the powers conferred upon the Corporation by section 24 (Power to use one form of mortgage for all purposes) of the Act of 1909.

47. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act borrow any money (other than money required for paying the costs charges and expenses of this Act as hereinafter defined) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

A.D. 1916.
Restriction
on exercise
of borrowing
powers.

48. The following provisions of the Act of 1900 and the Act of 1909 shall with the necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Application
of financial
provisions of
Acts of 1900
and 1909.

Wakefield Corporation Market Act 1900—

Section 31 Certain regulations of Public Health Act 1875 as to borrowing not to apply;

Section 32 Mode of raising money;

Section 35 Mode of payment off of money borrowed;

Section 36 Sinking fund;

Section 37 Protection of lender from inquiry;

Section 38 Corporation not to regard trusts;

Section 39 Appointment of receiver;

Section 43 Application of money borrowed; and

Section 48 Inquiries by Local Government Board:

Wakefield Corporation Act 1909—

Section 21 Power to re-borrow.

49. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under that Act shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid in connexion with the water undertaking of the Corporation.

Audit of
accounts.

50.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

Power to use
sinking fund
instead of
borrowing.

A.D. 1916.
—

- (A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or
- (B) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by section 24 (Power to use one form of mortgage for all purposes) of the Act of 1909 and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.
- (2) The Corporation when exercising the powers conferred on them by this section shall—
- (A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund:
- (B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund:
- (c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.
- (3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.
- (4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the

exercise of the powers contained in this section as that Board shall require. A.D. 1916.

51.—(1) The town clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of such town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the said town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

Returns to
Local
Government
Board as to
sinking fund.

(2) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order

A.D. 1916. — mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(3) Section 41 (Return respecting sinking fund to Local Government Board) of the Act of 1900 is hereby repealed.

Expenses of execution of Act.

52. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the district fund.

Application of certain provisions of Acts of 1880 and 1909.

53. The following provisions of the Act of 1880 and the Act of 1909 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Wakefield Corporation Waterworks Act 1880—

Section 65 Summonses &c. may be in print &c.:

Wakefield Corporation Act 1909—

Section 28 Authentication and service of notices &c.;

Section 29 Recovery of penalties;

Section 30 Information by whom to be laid;

Section 31 Penalties to be paid over to treasurer; and

Section 32 Application of section 265 of Public Health Act 1875.

Repeal of section of Act of 1880.

54. Section 67 (Proof of debt in bankruptcy &c.) of the Act of 1880 is hereby repealed.

Recovery of demands.

55. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Evidence of appointments authority &c.

56. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the city it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any

resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1916.

57. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

58. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or of any local Act for the time being in force in the city by reason of his being liable to any rate. Judges not disqualified.

59. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the revenue of the water undertaking of the Corporation the district fund and the city fund or any of them and in such proportions as the Corporation may determine or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

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